discovery regarding the Motion to Compel Arbitration was not dependent on the Notice of Entry of Order of the May 1, 2025, Ex Parte ruling. Plaintiff had the right to conduct such discovery before the May 1, 2025 and after the May 1, 2025 hearing. Plaintiff was present at the May 1, 2025 hearing when the court preserved and pronounced his right to conduct such discovery in its ruling. Fourth, on August 14, 2025, Defense counsel Crowell emailed Plaintiff offering him "the opportunity to propound discovery "related to the motion." Plaintiff did not serve any discovery regarding the motion to compel arbitration in response to Defense Counsel's invitation. (Crowell Decl. ¶15, Ex. H) The court finds Plaintiff was not prejudiced as to his right to conduct discovery on the issue of the motion to compel for want of service of Notice of the Entry of the May 1, 2025 ruling.

"Where the litigant starts the discovery process without prior court intervention [the] burden is then on the party seeking to deny that right." (*Kramer v. Superior Court of Los Angeles County* (1965) 237 Cal.App.2d 753, 759, citing *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal.2d 355, 379.) While Defendant was able to stay the case as to all other topics of discovery, Plaintiff always had the right to discovery related to the Motion to Compel Arbitration and the May 1, 2025, Ex Parte only confirmed is pre-existing right to do so. Thus, the failure of Defendant to serve Defendant with the signed May 1, 2025, Ex Parte order did not infringe on his right to conduct discovery regarding the Motion to Compel Arbitration. It is also noteworthy that Plaintiff does not complain of any unanswered discovery responses related to the motion to compel arbitration.

Conclusion

Based on the above, **Plaintiff's Motion for Reconsideration is denied**. The matter remains stayed in view of the referral to arbitration.

9. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer filed by defendant County of Contra Costa County is **sustained without leave to amend**. The motion to strike is **denied as moot**. County shall prepare a proposed judgment, separate from any order on this motion, send to plaintiff for approval as to form, and submit to the Court.

I. Factual Background

The First Amended Complaint at issue here ("FAC") involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-014-5) was purchased in February of 2014 while the other (APN 264-081-013-7) was purchased in February of 2016. (See FAC, ¶¶1, 10.)

Plaintiff contends, essentially, that the County sold him the parcels despite lack of an easement. (FAC, ¶¶7-9.)

Plaintiff filed his complaint against the County on January 29, 2025, alleging four causes of action (labeled "(1) Property Sale With Incorrect Title Deed and Disclosures; (2) Sale of Landlocked

Property; (3) Incorrect Processing of Refund Claim Filed with Contra Costa County Board of Supervisors; and (4) Loss of Money Due to Negligence). The Court sustained a demurrer to the initial complaint, with leave to amend, after a hearing on October 24, 2025.

Plaintiff filed his FAC on October 28, 2025, setting forth five causes of action as follows: (1) Refund/Rescission -Rev. & Tax. Code §§3729 & 3731; (2) Tax Refund/Cancellation - Rev. & Tax. Code §§ 5096-5097; (3) Traditional Mandamus - CCP § 1085 (Failure to Proceed as Required by Law); (4) Declaratory Relief – CCP § 1060; and (5) Inverse Condemnation.

After meeting and conferring with plaintiff (see Declaration of Jaskiran K. Samra in Support of Demurrer), as required by Code of Civil Procedure, section 430.41, the County filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), and California Revenue and Taxation Code section 3691 *et seq.*, which plaintiff opposes.

II. Evidentiary Matters

The County requests judicial notice of the following documents, which is **granted**:

Exhibit A –November 18, 2025 Order After Hearing on the initial demurrer in this case;

Exhibit B – Letter dated March 14, 2014, from City of Orinda to plaintiff;

Exhibit C – E-mail correspondence between plaintiff and County staff between February and March of 2016; and

Exhibit D –Alleged Code Violation Response by City of Orinda dated October 30, 2018.

Plaintiff objects to notice with respect to Exhibits B-D, arguing they are not the proper subject of judicial notice. These same exhibits were previously submitted by plaintiff in a request for judicial notice filed in support of his opposition to the previous demurrer. The Court granted judicial notice at his request. Accordingly, the objection has been waived.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. County's Contention that Plaintiff Amended Beyond the Scope of the Previous Order

The County demurs in part based on plaintiff having exceeded the scope of the Court's order on the previous demurrer. The order sustained the demurrer in full, and did not direct any particular sort of revisions that might salvage plaintiff's causes of action. Accordingly, plaintiff had sufficient justification to attempt to state a claim under whatever theory he might be able to do so. While generally true that a plaintiff may amend the complaint only as authorized by the Court, and may not amend the complaint to add a new cause of action without permission (*Harris v Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023), here, the Court has considered each new cause of action on its merits. Notwithstanding such consideration, none of the causes of action state sufficient facts to overcome demurrer.

B. Timeliness

As stated in the Court's order on the previous demurrer, plaintiff's only remedies are those set forth in the California Revenue and Taxation Code. (See, e.g., *Ribeiro v. County of El Dorado* (2011) 195 Cal.App.4th 354, 357.) Plaintiff is nevertheless not entitled to those remedies because he failed to petition the County for rescission within a year after the tax deeds were executed (in 2014 and 2016), or even within a year of being on notice of any potential claims, further discussed below.

Under Revenue and Taxation Code, sections 3711, 3725–3731, a tax sale purchaser may rescind the sale when the foreclosing public entity commits fraud, when the sale is invalid, or when an irregularity in the taxation or sale proceedings occurs.

As to the procedure for raising such a challenge, Revenue and Taxation Code, section 3725, subdivision (a) provides as follows:

> A proceeding based on alleged invalidity or irregularity of any proceedings instituted under this chapter can only be commenced in a court if both of the following are satisfied:
>
> > (1) The person commencing the proceeding has first petitioned the board of supervisors pursuant to Section 3731 *within one year of the date of the execution of the tax collector's deed*.
> >
> > (2) The proceeding is commenced within one year of the date the board of supervisors determines that a tax deed sold under this part should not be rescinded pursuant to Section 3731.
>
> (Emphasis added.)

Section 3725 further excludes tax sale challenges from the Code of Civil Procedure sections addressing statutes of limitations. (*Id*., at subd. (b).)

Plaintiff did not petition the County "within one year" of either execution of the deed for the parcels he acquired. It logically follows that the Board of Supervisors also never made the determination that his tax deed should not be rescinded (nor does plaintiff plead this).

Plaintiff did not petition the County until July 2024, following litigation against neighboring property owners. July 2024 is approximately ten years after the first tax collector's deed was executed on March 18, 2014,and eight years after the second tax collector's deed was executed on March 11, 2016. (See Request for Judicial Notice in Support of Plaintiff's Opposition to Demurrer, filed September 22, 2025, Exhibit B [Final Statement of Decision in C22-00619], hereinafter "Statement of Decision," at 3:21-4:11.)

In its order on the previous demurrer, the Court effectively invited plaintiff to provide authority that might support application of the discovery rule to Revenue and Taxation Code, section 3725, but plaintiff has failed to do so. The County also reports having found no such authority. (Reply in Support of Demurrer, filed March 13, 2026, 4:14-16.) Still, assuming the discovery rule might apply in appropriate cases, this case does not satisfy any delayed discovery by plaintiff of his potential title defects. At the latest , plaintiff knew about the defects when he filed Contra Costa Superior Court Case C22-00619 in 2022, seeking declaratory relief over the existence of the easement.

The likely date of accrual dates back much earlier. As previously noted by the Court, plaintiff made an inspection of the parcels in March 2014 and noted that the paved road ended at a neighboring property. At that time, his neighbor insisted that the neighbor's property encroached upon plaintiff's easement so the easement had ceased to exist. (See Statement of Decision at 4:19-

5:11 [referring to numerous email exchanges in March of 2014 between plaintiff and neighbor].) This constituted notice to plaintiff sufficient to trigger time limitations for plaintiff's time to petition the County.

While the reasonableness of a delay can be a question of fact (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797), it can also be determined as a matter of law in cases where the undisputed facts show the requisite notice. (*65 Butterfield v. Chi. Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054-1055 ["it is the discovery of facts, not their legal significance, that starts the statute"].)

Further, plaintiff's arguments related to the significance of Judge Weil's August 2025 ruling are misplaced. The ruling, submitted as Exhibit B to the Request for Judicial Notice in Support of Plaintiff's Opposition to Demurrer, filed September 22, 2025, was in response to a late claim petition filed by plaintiff. Plaintiff had filed a claim against the County, and the County had rejected the claim as untimely. Plaintiff petitioned the Court for leave to submit a late claim, but Judge Weil ruled that the petition was moot. The reasoning was because the claims brought pursuant to the Revenue and Taxation Code were exempt from the claim filing requirements in the Government Claims Act. As for the other causes of action, Judge Weil's ruling does not address the sufficiency, just their timeliness, if they existed. As noted above, the Revenue and Taxation Code remedies are the exclusive avenue for relief in the context of tax sales like those in this case. Accordingly, any mention of the "discovery date" in that ruling does not control here.

The demurrer is sustained on the ground of untimeliness to each cause of action.

C. Voidness

The County argues plaintiff cannot establish that the tax deeds are void (as he would be required to do in order to obtain a refund under Rev. & Tax. Code, § 3729). Plaintiff's allegations still do not amount to fraud, which the previous order correctly noted is one basis on which tax sale deeds can be voided if timely challenged.

The demurrer is further sustained on this ground.

D. Leave to Amend

The demurrer is sustained in its entirety without leave to amend. Though plaintiff asserts he has added allegations that cure the issues previously identified by the Court, the facts are still insufficient. Plaintiff's opposition, while noting leave to amend should be liberally granted, does not provide any additional facts to change this result. (See, e.g., *Medina v. Safe-Guard Products, Internat., Inc*. (2008) 164 Cal.App.4th 105, 112 ["the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading"].) Plaintiff purchased the parcels in 2012 and 2016. At the latest, Plaintiff knew about the issue with the easement in 2022, when he filed a case in this court in 2022 seeking declaratory relief over the existence of the easement. He cannot turn back the clock on the filing of the instant action on January 29, 2025. It does not seem likely that he can allege additional facts to defeat the one year statute mandated by Revenue and Taxation Code § 3725. If plaintiff intends to contest this ruling, he shall come prepared to discuss any proposed additional facts that would cure the defects noted herein.